

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN SOUTH AFRICA

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in South Africa, grounded in the constitutional and environmental-authorisation system and documented campaigns

This guide uses the South African legal terms you will actually encounter (Environmental Authorisation, NEMA, PAJA, IPILRA, and so on), each defined on first use and in the Glossary. It describes the national framework; provinces and municipalities have their own rules and authorities, so check locally.

A note on terms. Important terms are shown in **bold** the first time they appear, and each is defined in the **Glossary at the end of this guide.**

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action directly determines project outcomes in South Africa. Projects that clear every political and commercial hurdle still fall when opposition is organised, documented, and legally sharp. In 2018, the **Amadiba** community of **Xolobeni**, on the Wild Coast, won a High Court ruling that a mining right could not be granted over their land without their **full and informed consent** — not just consultation. Communities have used the courts to force the government to clean up the air of the **Highveld**, and to require that a coal plant's **climate** impacts be assessed before it is approved. Across the country, communities and public-interest groups have forced projects to be refused, set aside, redesigned, or abandoned. These outcomes were not inevitable; communities made them happen.

But most communities don't know HOW to make opposition effective. They attend one public meeting, then give up. They assume "the department will refuse it" without building public pressure, lodging an **appeal**, or going to court. They generate coverage without a strategy. They organise people and then lose them to burnout after four months.

This guide shows what actually works — in the South African system.

The Strategic Framework

Successful opposition campaigns follow the same basic pattern:

STEP 1: TARGET IDENTIFICATION

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STEP 2: DOCUMENTATION (proof of harm)

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STEP 3: LOCAL OPPOSITION BUILD (organised community)

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STEP 4: LEGAL CHALLENGES (appeal / judicial review)

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STEP 5: MEDIA STRATEGY (public visibility)

These operate SIMULTANEOUSLY (not sequentially)
Each step amplifies the others
Multi-tactic pressure compounds toward victory

Why the legal step matters so much here: South Africa gives communities an unusually strong set of levers. The Constitution guarantees everyone a **right to an environment** that is not harmful to their health or well-being (**section 24**) — a right courts enforce. Any decision to grant an **Environmental Authorisation** can be taken on **internal appeal to the Minister or MEC**, and then reviewed by a court under the **Promotion of Administrative Justice Act (PAJA)** if it was unlawful, unreasonable, or procedurally unfair. Standing is broad: under **section 32 of NEMA**, a person may act not only in their own interest but in the **public interest** and in the **interest of protecting the environment**. Where **customary land** is involved, the community's **consent** is required (the lever that stopped the Xolobeni mine). And a costs rule — the **Biowatch principle** — means a community that litigates in good faith on a genuine environmental or constitutional issue against the state usually will not be ordered to pay the state's legal costs if it loses. No South African campaign should be planned without understanding these.

Critical Caveat: A Tilted System Can Make Opposition Harder (But Doesn't Make It Impossible)

Before you invest time, money, and emotional energy, understand this:

First, a definition. This guide calls it a **system tilted toward approval** (sometimes called *institutional bias*). It does not mean anything illegal. It means the bodies that decide on a project lean toward approving it — because the government is pushing investment and jobs, because the developer's own study drives the assessment, or because refusals are rare. (In South Africa the phrase *state capture* is used for something quite different and far more serious — the grand corruption of state institutions — which belongs in Section 11, not here.)

When these factors are present, opposition becomes harder. It does not become impossible. It becomes slower and more expensive and has a lower chance of stopping a project outright — but it still routinely wins appeals, set-asides, conditions, redesigns, and delay. Where there is genuine misconduct — bribery, an undeclared interest, offences under the anti-corruption law — that is a different and more serious problem, covered in Section 11.

This is covered in Sections 10 and 11. Read them before committing resources.

HOW THE SYSTEM WORKS: WHO DECIDES, AND HOW

If you've never dealt with how projects get approved, read this section first. It explains, in plain terms, who holds power over a development in South Africa, how a decision gets made, why the money so often points toward "yes," and the handful of words you'll need. Every term is defined here on first use. The rest of the guide assumes you know this map.

The levels of government — and what each one controls

South Africa has three spheres of government, and the environment is a shared national-and-provincial function.

- **National government** — the Minister of Forestry, Fisheries and the Environment (and the department, the **DFFE**) sets the environmental framework and is the **competent authority** for some large or national projects; the Minister of Mineral and Petroleum Resources grants **mining rights** (under the **MPRDA**) and, since the "one environmental system," the **Environmental Authorisation** for mining.
- **Provincial government** — the **MEC** and the provincial environmental department are the **competent authority** for most **Environmental Authorisations**, and hear appeals for provincial decisions.
- **Local government (municipalities)** — control land-use planning and zoning (under **SPLUMA**) and some by-laws.

So which body decides *your* project?

- A factory, housing development, landfill, or infrastructure project → an **Environmental Authorisation** from the **provincial department** (or national DFFE for large/national ones), plus municipal planning approval, and often a **water-use licence, waste licence, or air-emission licence**.
- A mine or prospecting operation → a **mining/prospecting right** from the Department of Mineral and Petroleum Resources, **and** an **Environmental Authorisation** under NEMA — and, on **customary land**, the **community's consent** under **IPILRA**.
- Anything affecting a protected area, the coast (Integrated Coastal Management Act), or a water resource → the relevant specific licence and clearance.

The expert and oversight bodies

- **The competent authority** (the provincial department or the DFFE) — takes the Environmental Authorisation decision, advised by its officials and the developer's specialists.
- **The Environmental Assessment Practitioner (EAP)** — the (developer-appointed) specialist who compiles the **EIA**.
- **The Green Scorpions** (Environmental Management Inspectors) — enforce environmental law.
- **The courts, the Public Protector, the SIU, and the Auditor-General** — the accountability bodies (see the overseers, below, and Section 11).

How a decision is actually made — the authorisation journey

For a listed activity, a developer must obtain an **Environmental Authorisation** under **NEMA** before starting. The process (under the **EIA Regulations**) runs roughly:

1. **Application and screening** — is a **Basic Assessment** or a full **Scoping and EIA** required?
2. **Public participation** — this is central. The developer's EAP must **register interested and affected parties (I&APs)**, make the reports available, and hold a comment process and often a public meeting. **Your objections must go in here, in writing, on the record.**
3. **Assessment** — the EAP compiles the **EIA report** (impacts, alternatives, mitigation, specialist studies).
4. **Decision** — the **competent authority** grants or refuses the Environmental Authorisation, with conditions.
5. **Internal appeal** — any I&AP can lodge an **appeal to the Minister or MEC** (usually **within 20 days** of being notified of the decision). The appeal can suspend the authorisation.
6. **Judicial review** — an unlawful decision can be taken on **review to the High Court under PAJA**.

A **weak or misleading EIA, a defective public-participation process, or (on customary land) a missing community consent** are among the strongest grounds to stop or delay a project.

The rulebook — the laws that decide the outcome

- **The Constitution** — **section 24** (the right to an environment not harmful to health or well-being, protected for present and future generations); **section 33** (the right to lawful, reasonable, and procedurally fair administrative action); **section 32** (the right of access to information).
- **NEMA (National Environmental Management Act 107 of 1998)** — the framework: the Environmental Authorisation, the EIA, the principles, and (in **section 32**) broad standing to litigate.
- **The Specific Environmental Management Acts** — the Air Quality Act, the Waste Act, the Biodiversity Act, the Protected Areas Act, the Integrated Coastal Management Act.
- **The MPRDA (Mineral and Petroleum Resources Development Act)** and **IPILRA (Interim Protection of Informal Land Rights Act 1996)** — mining rights, and the **consent** of customary communities.
- **PAJA (Promotion of Administrative Justice Act 3 of 2000)** and **PAIA (Promotion of Access to Information Act 2 of 2000)** — judicial review, and access to information.

Follow the money — why the system often leans toward "yes"

- **Provinces and municipalities** compete hard for investment and the jobs and rates a project brings, so there is often intense official pressure to approve.
- **National government** promotes mining, energy, and infrastructure and frames projects as growth priorities.
- **Developers** are often well-resourced companies whose own specialists compile the EIA and who can fund the lawyers who defend the decision.
- Refusals of Environmental Authorisation are relatively rare; most reach the decision stage with conditions.

None of this makes a decision inevitable. It explains why a decision rarely tips your way on its own — it takes organised, evidenced pressure.

The overseers — who watches the decision-makers

- **The courts** — the **High Court**, the **Supreme Court of Appeal (SCA)**, and the **Constitutional Court** — enforce the section 24 right and review decisions under PAJA, with broad standing under NEMA section 32 and the **Biowatch** costs protection.
- **The Public Protector** — a Chapter 9 institution that investigates maladministration and improper conduct in government and state-owned enterprises.
- **The Special Investigating Unit (SIU)** — investigates corruption and maladministration and recovers state losses through the **Special Tribunal**.
- **The Auditor-General (AGSA)** — audits government and refers material irregularities.
- **The South African Human Rights Commission (SAHRC)** — for rights-based complaints, including the environmental right.

QUICK REFERENCE: SUCCESS RATES BY STEP & COMBINATION

These ranges describe the general effectiveness of each tactic drawn from documented opposition campaigns. They are patterns, not guarantees. In South Africa, the variable most likely to push a campaign above these ranges is a well-founded challenge on a real defect — a missing **community consent** on customary land, a defective **public-participation** process, or a misleading **EIA** — carried through the **appeal** and, if needed, a **PAJA review** (Step 4).

Individual Step Success Rates

Step	Success Rate	Timeline	Cost (ZAR)	What "Success" Means
Documentation Only	5-10%	3-4 months	R80,000	Project slowed, public awareness only
Opposition Only	15-20%	6-12 months	R250,000	Public pressure, minor modifications

Opposition Only	10-20 %	0-12 months	R200,000	Public pressure, minor modifications
Legal Only	20-30%	12-24 months	R0-500,000	Slow; strong if the defect is real (Biowatch limits costs risk)
Media Only	10-15%	3-6 months	R100,000	Public knows, but no action
Docs + Opposition	25-35%	12 months	R320,000	Slowed, some modifications
Docs + Legal	30-40%	12-18 months	R450,000	Stronger legal arguments, slower
Opposition + Legal	35-45%	12-18 months	R600,000	Political pressure strengthens the case
Opposition + Media	30-40%	9-12 months	R320,000	Visibility creates political pressure
All 5 Steps Combined	60-75%	12-24 months	R650,000	Authorisation set aside/refused/modified or project delayed

Key insight: All five steps together = 3-4x more effective than any single step.

A note on legal cost: the appeal to the Minister/MEC is free to lodge, and the Biowatch principle means a good-faith public-interest litigant usually will not pay the state's costs if it loses — so the "Legal" figures are not a hard floor. Public-interest law centres (such as the Centre for Environmental Rights and the Legal Resources Centre) act for communities, often at no charge.

Effectiveness Visualization



One important point: a single clear legal defect — most powerfully a missing **community consent** on customary land, a **public-participation** process that was skipped or stage-managed, or a misleading **EIA** — can lead the Minister on appeal, or a court on **PAJA** review, to set aside an authorisation even where the politics favour the project, because it is applying a legal standard the authority cannot ignore. (An authorisation set aside for a *curable* defect can be re-granted after it is fixed, so an early win may need defending.)

Step Importance Ranking (When All Combined)



2. DOCUMENTATION (Step 2)

22%

Why: provides ammunition for the appeal, courts, and media; grounds opposition in facts
3. MEDIA STRATEGY (Step 5)

20%

Why: makes opposition/legal/documentation visible, creates political cost
4. LEGAL CHALLENGES (Step 4)

18%

Why: the appeal and courts can set aside an authorisation – and hold the consent and EIA levers
5. TARGET ID (Step 1)

15%

Why: foundation – if wrong, everything fails

Real insight: a large, organised, visible community that has also put well-argued objections on the record in the **public-participation** process and, on customary land, insisted on its right to **consent**, is far more powerful than perfect documentation or a brilliant legal argument standing alone.

STEP 1: TARGET IDENTIFICATION

Time to complete: Weeks 1-4

Cost: R0

Outcome: A clear picture of what you're fighting, who decides, and when the decision is final

Core Questions You Must Answer

Before you organise a single person, answer these precisely.

Question 1: What Exactly Will Be Destroyed?

Not: "Environmental damage"

But: "The mine takes 900 hectares of grazing and cropping land the community holds under **customary tenure**, and destroys a wetland feeding the [river]."

Not: "Pollution"

But: "The plant will emit an estimated [X] of fine particles over the nearest homes of 1,500 people, in an area already exceeding the national air-quality standard."

Not: "Community harm"

But: "The project cuts [number] households' access to grazing, water, and ancestral graves."

Why this matters: specific harms are easier to document, litigate, and organise around. Vague opposition dies; specific opposition survives. Harm to **customary land**, a **wetland** or water resource, a protected area, or the **coast** also opens a **specific legal front** (community consent; the water, biodiversity, or coastal-management laws).

Question 2: Who Decides?

You cannot pressure an abstraction. Identify the decision-maker precisely — it is usually one of these:

- **The provincial environmental department** (or the national **DFFE**) — the **competent authority** for the **Environmental Authorisation**.
- **The Department of Mineral and Petroleum Resources** — for the **mining/prospecting right** (and the mining Environmental Authorisation).
- **The municipality** — for land-use/planning approval.
- **The affected community** — whose **consent** is required, on **customary land**, under **IPILRA**.

Write it down concretely: "The provincial department will decide the Environmental Authorisation after the public-participation process closing on [date]. It is a mining project on customary land, so the community's **consent** is required, and the mining right sits with the national mineral-resources department."

Question 3: What Specific Action Stops It?

Not: "Stop the project"

But: "Persuade the competent authority to refuse the Environmental Authorisation, or the community to withhold consent" — or, if refusal is unrealistic, "obtain strict conditions, real rehabilitation, and a redesign."

Not: "Protect the environment"

But: "Show the **public-participation** process was defective, the **EIA** misleading, or the **community consent** never obtained, and take it on **appeal to the MEC/Minister** and then on **PAJA review**."

Why this matters: you can demand something achievable. Vague demands are easy to ignore; specific ones create measurable pressure and, if the process is unlawful, become the ground for the appeal and the court.

Question 4: When Is the Decision Final?

Timeline tells you how much time you have. Map every date: when the **draft EIA/scoping report** is out for comment, the public meeting, the decision on the Environmental Authorisation (and the mining right), and the **windows to challenge** — an **appeal to the Minister/MEC must usually be lodged within 20 days** of notification of the decision. Don't wait: register as an **I&AP** and comment during the process, and be ready to appeal fast.

Question 5: Are There Documented Financial or Policy Pressures?

- This is the tilted-system assessment question. Know it BEFORE you organise:
- Is the project a declared **strategic** investment or a big provincial priority, hardening political backing?
 - Is the **EIA** compiled by the developer's own **EAP** only?
 - Does the province or municipality depend on the project for jobs, rates, or mining **royalties**?
 - Is the developer a large company with deep resources for specialists, lawyers, and appeals?
 - Has the project already started work and is seeking to regularise it after the fact?

Why this matters: if strong "strategic project" backing or developer-controlled studies are present, opposition must overcome different barriers (Section 10). It doesn't mean opposition can't work — it means realistic expectations and, often, a focus on the **consent**, the **public-participation**, and the **EIA** defects, on conditions, and on the **appeal and review**, rather than a straight political refusal.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

- Time to complete:** Months 1-4
Cost: R80,000-120,000 (ZAR)
Outcome: Three polished reports (30+ pages total) showing specific, quantified harms

- Success Rate (Documentation Alone):** 5-10%
Success Rate (Documentation + Opposition): 25-35%
Success Rate (Documentation + Opposition + Legal + Media): 60-75%

The Three Documentation Layers

Documentation turns vague opposition ("This is bad") into undeniable evidence ("This specific harm will occur to these specific people/places at these specific costs"). Success comes from three layers working together.

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

- What it is:** documentation of existing conditions BEFORE the project begins — including who lives on and uses the land, and how.
- Why it matters:** developers claim "the land is unused" or "already degraded." Baseline documentation proves what — and who — was there, and it cannot be reconstructed later.

Documented case — the Amadiba community and the Xolobeni mine

An Australian company sought a right to mine titanium-bearing sands across roughly 2,859 hectares of the **Wild Coast** — land the **Amadiba** community of Umgungundlovu, at **Xolobeni**, has occupied and used for generations under **customary tenure**. Its supporters treated the dunes as an ore body. The community made that impossible. Organised as the Amadiba Crisis Committee and led by figures including Duduzile Baleni, they documented and asserted their living relationship with the land — grazing, cropping, ancestral graves, and the tourism and subsistence economy of an intact coast — and their **informal land rights** protected under the **Interim Protection of Informal Land Rights Act (IPILRA)**.

It changed the law. In *Baleni and Others v Minister of Mineral Resources* (High Court, 22 November 2018), the court held that IPILRA requires the community's **full and informed consent** — not merely the "consultation" the mining law demands — before a mining right can be granted over land they hold under customary tenure, and that the Minister lacked authority to grant it otherwise. The community's documented account of its rights and its relationship to the land was the foundation of that ruling. (The struggle has been long and dangerous — a community leader was murdered in 2016 — and the win has had to be defended, a reminder that a victory is rarely the end.)

Why it matters for you: the Amadiba community's documentation — who lived there, how they used the land, and what rights they held — was decisive. Documenting existing conditions, including human occupation, use, and tenure, is the foundation of everything that follows.

Building your own baseline (typical process). Document existing conditions before the project starts, because a developer will claim the land is "unused" and baseline cannot be reconstructed later. A workable approach: surveys across a season cycle of the project area plus reference sites; a species and habitat inventory with GPS locations, flagging anything protected under the Biodiversity Act that the developer's **EIA** omitted; a record of how the land is occupied and used — grazing, cropping, water, graves, sacred sites, and any

customary tenure or **informal land rights** (the basis of a consent claim); proximity to any protected area, wetland, or the coast; and water and air baselines (quality and seasonal variation). Typical cost is around R80,000-100,000 for a specialist/EAP-independent consultant, GPS, and testing — reducible with knowledgeable community members, university researchers, and naturalists. Dated, same-spot photographs and geo-referenced maps make it credible.

LAYER 2: IMPACT ANALYSIS

What it is: detailed analysis of what specific harms will occur, based on the project description plus your baseline.

Why it matters: it shows not just "something bad" but "specifically THIS BAD in THIS WAY" — and it maps directly onto what the **EIA** must properly assess.

- Use the developer's own words and the assessment rules.** Powerful, documentable weak points in South African assessments include:
- **A misleading or incomplete EIA.** The **EIA report** must genuinely assess the project's significant impacts, alternatives, and mitigation. Courts have set aside authorisations where the assessment ignored a relevant factor — for example, in the **Thabametsi** case, where a coal plant's authorisation was reviewed because its **climate-change** impacts had not been assessed. An EIA that omits or understates impacts is a strong ground.
 - **A defective public-participation process.** The developer's **EAP** must properly register and inform **I&APs**, make reports available, and record objections. A rushed, inaccessible, or stage-managed process is a strong, specific defect.
 - **Missing community consent.** On **customary land**, the community's **consent** under IPILRA is required — its absence is what stopped the Xolobeni mine.

Convert each of the developer's admissions ("temporary disturbance," "limited loss") into a quantified prediction against your baseline.

Outcome (illustrative): an **EIA** or **public-participation** process found defective, or a **community consent** shown to be missing, can lead the Minister on appeal or a court on review to set aside the authorisation — adding months or years, or stopping the project.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

What it is: quantification of human-health and economic costs to the community.

Why it matters: decision-makers and the public respond to human cost. "X hectares affected" matters less than "an estimated 45 additional respiratory cases a year, and RX of health-system cost" — or "the grazing, cropping, and tourism that sustain 200 households destroyed."

Method: use recognised air-quality or water modelling and the public-health literature to translate emissions or land loss into health and livelihood outcomes, then attach costs — additional respiratory and cardiovascular cases, lost grazing, cropping, fishing, and tourism income, and total annual and lifetime cost for the affected population.

Outcome (illustrative): an independent health-and-livelihood analysis can move a municipality or province, feed the appeal and the court case, and force conditions the original design lacked.

How to Structure Your Documentation

Phase 1: Baseline Conditions (Months 1-2)

Engage an independent specialist or ecologist (or use knowledgeable community members, university researchers, and naturalists); document conditions AND human occupation, use, tenure, and graves/sacred sites. **Deliverable:** a 20-30 page baseline report with species/habitat inventory, a record of land use and tenure, water/air data, dated photographs, and geo-referenced maps.

Phase 2: Impact Analysis (Months 2-3)

Obtain the **EIA report** and the authorisation file (use **PAIA** if needed); identify specific impacts; test the study against the rules (completeness, public participation, community consent, water/biodiversity/coastal). **Deliverable:** a 20-30 page impact analysis with quantified predicted impacts, comparison to baseline, and the developer's own admissions quoted back.

Phase 3: Health/Economic Analysis (Months 3-4)

Identify affected populations; estimate health and livelihood impacts and costs. **Deliverable:** a 15-20 page report written for the public and press.

Common Documentation Pitfalls (What Fails)

- **Waiting for perfect data.** Documented data beats perfect data that arrives after the authorisation.
- **Only environmental data.** Add health, livelihood, and human-occupation impacts — the arguments that move decision-makers, the appeal, and the public.
- **No independent check.** A report the authority can dismiss as "activist material" is far stronger after an independent expert or a

- university reviews it.
- **Ignoring the developer's own admissions.** Their **EIA report** is your best source; quote it against itself. Use **PAIA** to get it and the file.

Documentation Budget Breakdown (ZAR)

Item	Cost	Notes
Independent specialist / ecologist (baseline + species ID)	R60,000	Biodiversity and habitat survey
GPS / survey equipment	R8,000	Mapping/documentation
Water/air testing	R15,000	Sampling across seasons
Independent / university expert review	R12,000	Credibility
Printing/PAIA/translation	R5,000	Local-language copies for decision-makers
TOTAL	R100,000	Reducible with university partners and community members

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE COMMUNITIES THAT HOLD

Time to complete: Months 2-6 (foundation), 6-12 (sustained)
Cost: ~R250,000 (ZAR) for a full year
Outcome: 50-100 core people, 5-10 organisations, sustained organisation

Success Rate (Opposition Alone): 15-20%
Success Rate (Opposition + Documentation + Legal + Media): 60-75%

Critical Insight About Organising

Most opposition campaigns fail not because they can't build opposition, but because opposition burns out after 4-8 months. You need structures that prevent it.

PHASE 1: FOUNDATION (Months 1-2)

Goal: a core group of 15-20 motivated people and a clear picture of their concerns.

Step 1a: One-to-One Conversations

People don't join movements from pamphlets; they join from relationships. Identify the 15-20 people most affected or interested. **Talk to** each in person for an hour. Ask: "What's your biggest concern about this project?" Listen — don't pitch. Ask what they'd be willing to do. Each person has a different concern (land, water, health, grazing, graves, a way of life). Opposition organised around each shared concern is stronger than one generic message.

Step 1b: Affinity Groups by Concern

Organise small groups (3-8 people) around a shared concern, not around "opposition":

- **Land/livelihood group** — grazing, cropping, tourism, displacement and relocation
- **Water group** — the river, wetlands, groundwater, contamination
- **Health group** — air quality, dust, water-borne disease
- **Rights group** — **customary tenure, community consent**, graves and sacred sites

Each group meets regularly and works out how opposition serves *their* interest, coordinating while keeping its own framing.

Step 1c: Organise Through Structures That Carry Weight

Two vehicles matter. First, where **customary land** is involved, the community's own decision-making structures — and its right to **consent** — carry legal weight; a properly recorded community decision to withhold consent is one of the strongest things you can produce. Second, a **registered non-profit (NPC) or voluntary association** can speak for the community, receive donations, and take a matter to court; partner with established community organisations, and approach a public-interest law centre early.

PHASE 2: PUBLIC LAUNCH (Months 2-3)

Goal: announce opposition to the public, the media, and decision-makers.

Step 2a: Public Meeting (*imbizo* / community meeting)

Hold a community meeting where people set out their concerns to themselves, to the councillors and traditional leadership, and to press. A serious, informational meeting carries weight. Typical shape: welcome → project explanation → community concerns (each person a

few minutes) → expert Q&A (an ecologist, a health voice, a lawyer) → next steps.

Step 2b: Opposition Materials (Factsheets)

One page, in the **local language**. Decision-makers and neighbours won't read 30 pages; one page gets read. Structure: a headline stating the problem → quick quantified facts → the specific impact → **what you're asking for** → the evidence base → contact/resources. Print widely; distribute at taxi ranks, clinics, schools, the municipal office, places of worship; post a digital version. Cost: ~R6,000.

Step 2c: Register as I&APs, Comment, and Record the Community's Position (the decisive record)

Two things matter most here. First, **register as interested and affected parties (I&APs)** and put **written objections on the record** in the public-participation process (and demand a proper, accessible process, in the local language, if it is rushed or held far away), each raising real grounds — a misleading **EIA**, harm to water or biodiversity, ignored graves and land use. Second — on **customary land** — **formally record the community's decision** (through its recognised structures) objecting and, where applicable, **withholding consent**. Together these build a record the Minister on appeal and the courts take seriously. Cost: ~R2,000.

Step 2d: Media Coverage at Launch

Release data + objections + the community's recorded position = a story. (Full press-release example is in Section 9, 9G.) Contact reporters, then send the study. Expect 1-3 local stories.

PHASE 3: COALITION EXPANSION (Months 3-6)

Goal: grow from 20 core people to 50+ core plus 5-10 organisations.

Step 3a: Organisation Outreach

Approach environmental and rights organisations — public-interest law centres (such as the **Centre for Environmental Rights** and the **Legal Resources Centre**), NGOs and networks, university research groups, land-rights and traditional-community organisations, farmers' and fishers' associations, and faith bodies — plus tourism operators and businesses that lose from the project. Research each; contact the right person; explain how opposition serves *their* aims; make a specific, tailored ask.

Tailored asks:

- **A public-interest law centre:** "We need help with the **appeal** and a possible **PAJA review** — will you assist?"
- **A university group:** "Would your researchers assess the health, water, or biodiversity impacts independently?"
- **A land-rights / traditional-community organisation:** "Help us record and defend the community's **consent** decision and land rights."
- **Farmers / fishers / tourism operators:** "This takes the land and coast we depend on — will you object and speak up?"

Step 3b: Coalition Agreements (Written)

A written agreement — who's in, how decisions are made, meeting frequency, the public message, who may speak for the coalition, conflict resolution, money, and an exit clause — prevents later conflict. Consensus is stronger but slower; voting is faster but can fracture.

Step 3c: Coordinated Public Work

Assign leadership by strength: environmental analysis to the NGO/university; land and consent to the community's own structures and a land-rights organisation; livelihood to the farmers'/fishers'/tourism groups; media to whoever has the contacts; the legal track to the law centre and the registered NPC. Sequence activities so each builds momentum (coalition launch → data release → recorded community position → public-participation deadline).

PHASE 4: SUSTAINED PRESSURE (Months 6-12)

Goal: maintain organised opposition across a 12+ month timeline.

Step 4a: Public Demonstrations (pickets / marches)

Regular, same time and place, growing attendance — outside the municipal or provincial offices, the department, or at the site. Handle logistics: the **notice required under the Regulation of Gatherings Act**, marshals, accessibility, and a sound system for large gatherings. Momentum matters: "50 gather" becomes "gathering grows to 500."

Step 4b: Media Campaign (Ongoing)

Monthly rhythm: week 1 a release tied to an event/data; weeks 2-3 social media 3x/week; week 4 a reporter check-in. Rotate themes (recorded community position → expert finding → coalition growth → march → appeal lodged).

Step 4c: Common Opposition Failure Points (How to Prevent)

Failure Point 1: Burnout (Months 4-8). Prevent it: regular (not constant) meetings; celebrate milestones; fund one part-time coordinator so volunteers don't carry logistics; schedule breaks; keep a public progress tracker. Campaigns that bring in a part-time

coordinator when founders tire tend to last for years; those that don't often collapse around month six.

Failure Point 2: Coalition Conflict. Prevent it with a written agreement and decision process, a clear escalation path (discuss → mediator), an explicit exit clause, and rotating leadership. Respect that the community and its traditional structures decide by their own processes — and be alert to developers trying to split a community by co-opting some leaders; keep decisions transparent and collective.

Failure Point 3: Competing Funding. Grants with conflicting conditions can pull groups off shared work. Coordinate grants up front and agree no group commits coalition resources without a coalition decision.

Failure Point 4: No Clear Wins. Name milestones as victories (community position recorded, 500 objections lodged, a large march, the appeal admitted) and publicise cumulative progress.

Opposition Building Budget: Year-Long Campaign (ZAR)

Item	Cost
Factsheet printing (local language)	R7,000
Website/phone/data (annual)	R6,000
Meeting / venue costs	R12,000
Outreach travel (often rural, long distances)	R30,000
Objection/recording materials	R2,000
Demonstration supplies (banners, sound)	R15,000
Coalition meeting costs	R12,000
Part-time coordinator stipend (12 months)	R120,000
Social-media / content (part-time, 3 months)	R30,000
Fundraiser/event costs	R12,000
TOTAL	R246,000

Funding the campaign. Money typically comes from four places: individual donations (local collections and online fundraisers such as BackaBuddy, plus dedicated legal-cost appeals); grants from environmental and rights funders (long lead times — apply early); benefit events; and in-kind support from coalition organisations (expertise, meeting space, volunteer time). A registered NPC can receive donations and, where eligible, grants. Aim to raise half the budget by month 6 and the rest by month 12. **Reductions:** use a volunteer coordinator, or run a shorter 6-month campaign, to cut ~R120,000; and public-interest law centres often act at no charge.

STEP 4: LEGAL CHALLENGES — THE APPEAL, JUDICIAL REVIEW, AND THE RIGHT TO CONSENT

Time to complete: 3-24 months (depends on track)
Cost: R0-500,000 (ZAR; the appeal is free, and the Biowatch principle limits the costs risk)
Outcome: an authorisation set aside or refused, conditions, or a project shelved

Representation impact:

- Experienced environmental lawyers or a public-interest law centre: 35-45% favourable-outcome likelihood
- General or less specialised representation: 25-35%
- Self-representation: 5-15%
- **Two key advantages:** the **Biowatch principle** means a good-faith public-interest litigant usually will not pay the state's costs if it loses; and law centres such as the **Centre for Environmental Rights** and the **Legal Resources Centre** act for communities, often at no charge.

Success Rate (Legal Only): 20-30%
Success Rate (Legal + Opposition + Media): 60-70%

South African legal strategy has three tracks, and the internal appeal comes first.

TRACK 1: PARTICIPATION AND THE INTERNAL APPEAL (the front door)

Most fights are shaped here, on the record, before any court is involved.

- **Register as an I&AP and object in the public-participation process.** Put written objections on the record raising real **legal grounds** — a misleading **EIA**, harm to a **water resource** or biodiversity, ignored land use and graves, a process not run in the local language. Demand a proper, accessible process if it is rushed or held far away.
- **Use PAIA.** File **Promotion of Access to Information Act** requests to obtain the **EIA report**, the specialist studies, the public-participation record, and the correspondence. PAIA turns a closed process into a documented one.
- **Lodge the internal appeal.** Any I&AP can appeal the Environmental Authorisation to the **Minister or MEC** — usually **within 20 days** of being notified of the decision. The appeal is free, it can **suspend** the authorisation, and it is your first and often best

chance to get the decision reversed or sent back. (Set out your grounds fully: the appeal record matters if you later go to court.)

Why this track matters: filing well — specific, on time, grounded in the law and the evidence — plus the **PAIA** paper trail and (on customary land) the recorded community position, often does more than any amount of noise, and it builds the case you'll need for Tracks 2 and 3.

TRACK 2: CONSENT, THE CONSTITUTION, AND THE IMPACT-STUDY LEVERS (the strongest cards)

Several grounds make this the most powerful legal tool available to South African communities.

1. Community consent on customary land (IPILRA). Where the project needs land held under **customary tenure**, the community's **full and informed consent** is required — not merely consultation — before a mining right can be granted. The absence of genuine consent is what stopped the **Xolobeni** mine. This is a strong, specific, and distinctively South African ground.

2. The section 24 environmental right. The Constitution guarantees everyone an environment not harmful to their health or well-being. Courts enforce it — as in the **Deadly Air** case, where the poor air quality of the Highveld was held to breach the section 24 right and the Minister was ordered to act. The right underpins every challenge.

3. A misleading EIA or a failure to consider a relevant factor. The **EIA** must honestly assess significant impacts and alternatives, and the decision-maker must consider all relevant factors. Where they do not — as in **Thabametsi**, where a coal plant's **climate** impacts had not been assessed — a court can set the authorisation aside on **PAJA** review. A skipped or stage-managed **public-participation** process is a related strong ground.

Standing and cost — why you can get heard. **Section 32 of NEMA** gives very broad standing: a person may act in their own interest, in the **public interest**, and in the **interest of protecting the environment**. The **Biowatch principle** protects a good-faith public-interest litigant from an adverse costs order against the state. And public-interest law centres take these cases. This means a community with a genuine legal point can get it before a court — often at little or no cost.

TRACK 3: JUDICIAL REVIEW UNDER PAJA (and the constitutional courts)

When an authorisation is unlawful, and the internal appeal has not fixed it, you take it on **review to the High Court under the Promotion of Administrative Justice Act (PAJA)**. The grounds (in **section 6(2)** of PAJA) include that the decision was unlawful, procedurally unfair, irrational, unreasonable, or ignored a relevant consideration (such as climate impacts, or a community's consent). The route runs **High Court → Supreme Court of Appeal → Constitutional Court**; the section 24 right and section 32 standing carry through, and **Biowatch** limits the costs risk.

Be realistic about two things. First, litigation **takes time** — a review can run for a year or more; if works are imminent, seek an **interim interdict** to halt them. Second, an authorisation set aside for a **curable** defect (a bad process, a gap in the EIA) can be **re-granted** after the defect is fixed, and projects sometimes proceed while an appeal or review is pending. So an early win may need defending: keep opposition and media pressure alive alongside the case.

Legal Strategy Decision Tree

START: Is a public-participation process or an Environmental Authorisation in process or issued?

- └ IN PROCESS → Register as I&AP + object NOW (Track 1). Use PAIA. Record the community's position.
- └ ISSUED → Lodge the INTERNAL APPEAL to the Minister/MEC (usually within 20 days).

Q1: Is there a legal defect the appeal or a court could act on?

- └ NO (lawful process, you just disagree) → focus on opposition + media.
- └ UNCLEAR → Take the file to a public-interest law centre / environmental lawyer.
- └ YES (missing community consent on customary land; misleading EIA / ignored relevant factor such as climate; defective public participation; breach of the s24 right) → Continue.

Q2: Budget?

- └ R0 → Internal appeal (free) + a public-interest law centre; Biowatch limits costs risk.
- └ R0-150K → Appeal + a PAJA review with a law centre / environmental lawyer.
- └ R150-500K → Full PAJA review + expert evidence, combined with opposition + media.

Q3: Are works imminent?

- └ YES → Seek an INTERIM INTERDICT to halt works (and note the appeal may already suspend the authorisation) – and plan for a possible re-grant after a curable defect is fixed.
- └ NO → The case proceeds on the normal timetable.

RECOMMENDED PATHS

Path A – Clear defect: lodge the internal appeal + PAIA file + recorded community position +

media, then PAJA review if needed. Highest ceiling, lowest cost (Biowatch).

Path B – Arguable but not clear-cut: build opposition + media; take advice; litigate if a defect crystallises.

Path C – No legal defect: don't litigate. Win it politically, on the record, and in the press.

Litigation Success Factors

Litigation succeeds when **combined** with the other steps:

- Litigation alone: 20-30%
- Litigation + opposition: 35-45%
- Litigation + opposition + media: 50-70%
- A clear defect — a missing **community consent**, a misleading **EIA** or ignored relevant factor, or a defective **public-participation** process — can exceed these (as at Xolobeni and Thabametsi), though a curable defect may be fixed and the authorisation re-granted.

A decision-maker on appeal, or a court on review, that sees a genuine legal defect, plus visible organised opposition, plus press coverage, treats the matter as serious.

What to Avoid: Legal Failures

- **Litigating instead of organising.** A lone technical point with no visible opposition reads as a niche dispute. Build opposition; litigate with it visible.
- **Skipping the internal appeal.** It is free, can suspend the authorisation, and builds the record — don't jump straight to court.
- **Missing the 20-day appeal window.** It is short and strict.
- **Weak grounds.** "This project is harmful" is an opinion, not a legal ground. "The community never gave the consent IPILRA requires" is a ground the Minister and a court can act on.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Time to complete: the full 12-month campaign
Cost: ~R100,000 (ZAR) for trained spokespeople + ongoing support
Outcome: regular coverage reaching a large audience, political pressure on decision-makers

Success Rate (Media Only): 10-15%
Success Rate (Media + Opposition + Documentation + Legal): 60-75%

South Africa has a strong national press, a vigorous investigative-journalism sector, and community radio, that cover exactly these fights — and a record of that coverage shifting outcomes. The Xolobeni struggle and the Highveld air-pollution case drew sustained national coverage, which raised the political cost of pushing the projects through.

How Journalists Actually Work

What reporters care about, in order: (1) **news** (something new happened), (2) **consequence** (someone is affected), (3) **timeliness** (it's happening now), (4) **conflict** (a real dispute), (5) **new information**. What they don't care about: your opinion, how angry you are, vague statements, or meetings with no hook.

The Newsworthiness Formula

NEWS = DATA + CONSEQUENCE + TIMELINESS + NEW INFORMATION

- **Bad:** "Residents oppose the project." (no data, no specific consequence, nothing new) → ignored.
- **Good:** "The community has recorded its refusal of consent; PAIA documents show the EIA omitted the wetland 300 households rely on; the department decides on [date]." → covered.

The difference is roughly a 4-5x change in the likelihood of coverage.

Know the Outlets That Cover This Beat

- **Community radio** and **regional press** — the audience that reaches your councillors and the provincial department.
- **National outlets** — *Daily Maverick*, *News24*, the *Mail & Guardian*, the SABC — for projects with wider significance.
- **Investigative and public-interest outlets** — **amaBhungane**, **GroundUp**, **Oxpeckers** (environmental investigative), and **Corruption Watch** — for deeper reporting on clearances, land, and misconduct.
- International outlets for landmark cases (they amplified Xolobeni).

Building Reporter Relationships (The Key)

Reporters don't ring campaigners for comment; campaigners ring reporters with tips. Identify 5-10 local, regional, and specialist reporters (environment, land, local-government rounds). **Contact** them first: "I saw your piece on [similar story]. We've got a similar situation in [place] and I think your readers should know." Then keep the relationship warm over months — a relevant article, a PAIA document, a milestone — so that when the big story lands, they already know you.

Sample Media Timeline

- Month 1: build relationships (contact five reporters)
- Month 2: first story (public-participation objections / recorded community position)
- Month 3: press event releasing the survey/PAIA findings; expert available
- Month 4: coalition announcement
- Month 5: march coverage
- Month 6: decision-date coverage

Real Media Dynamics (South African grounding)

- **Coverage plus mobilisation can change the law:** the Xolobeni struggle combined the Amadiba community's on-the-ground organising and recorded refusal with sustained national and international coverage — raising the political cost and helping secure the landmark consent ruling.
- **PAIA documents make stories:** an access-to-information disclosure that contradicts the developer's claims — a missing wetland, a copied study, a stage-managed meeting — is a gift to a reporter and a court.
- **Independent evidence beats the developer's study:** independent ecological, hydrological, or health analysis that contradicts an optimistic **EIA** lets the press write "experts dispute the developer's figures," and decision-makers take notice.

Media Measurement

Track cumulative stories and reach month over month. **Success indicators:** regular (at least monthly) coverage that carries your message and specific data, and visible decision-maker response. **Failure indicators:** no coverage for 2+ months, superficial coverage that drops your argument, or no response from decision-makers.

SECTION 8: EMAILS & LETTERS YOU CAN COPY

These are ready-to-use messages. Adapt the bracketed parts and send them. Keep them short, specific, and grounded in the law and the evidence — that is what gets read and acted on. The **PAIA request (8E)** and the internal appeal (8F) are among the highest-leverage messages here.

8A. Email to a reporter (story pitch)

Subject: Story tip: [specific finding] – [the department] decides [date]

Dear [Reporter],

I follow your coverage of [beat / recent story]. We have something in [place] your readers should know about, and there's a clear news hook.

In one line: [the community's recorded position / PAIA documents / an independent survey] show [quantified finding – e.g. "the EIA omitted the wetland 300 households depend on"], and [the department] decides on [date].

Why it's newsworthy: it's new (just obtained), specific (affects [# people / hectares / a community holding customary land]), and time-sensitive (decision [date]).

I can share the full report and PAIA documents and connect you with [one named expert] for an interview. Would a quick call this week work?

Regards,

[Name] – [Organisation] – [phone] – [email]

8B. Letter to the Minister/MEC or the municipality

Subject: [Refuse / attach strict conditions to] [project] – Environmental Authorisation ref [ref]

To [the MEC / Minister / the Municipal Manager],

I am a resident of [place] and a registered interested and affected party writing about the [project], on which a decision is expected around [date].

The concern, briefly: [one or two specific grounds – e.g. "a mining right over land the community holds under customary tenure, without the full and informed consent IPILRA requires, and an EIA that omits the wetland the community depends on"].

I am asking you to [specific, achievable action – e.g. "refuse the Environmental Authorisation," or "require genuine community consent, strict conditions, and a redesign"].

[If true:] The community has formally recorded its objection [and withholding of consent]; [#] residents have lodged objections; [#] organisations share the concern.

I would welcome a meeting and can share our full evidence.

Respectfully,
[Name], [address], [phone], [email]

8C. Register as an I&AP / object / record the community's position

PART A – WRITTEN OBJECTION (public-participation process)

To: [the Environmental Assessment Practitioner / the competent authority], re [project]

Please register me as an interested and affected party (I&AP) and record this objection to the [project].

1. Who I am: [name], [place], [interest].
2. Grounds (with evidence):
 - a. [Customary land / consent] – the project affects land the community holds under customary tenure; the full and informed consent required by IPILRA has not been obtained. (Attach.)
 - b. [Misleading EIA] – the EIA omits [impact], understates [impact], and [ignores / contradicts] the ground reality documented here.
 - c. [Defective process] – the reports were not made available in [language] / the meeting was held far from the affected community / objections were not recorded.
3. What I ask: that the Environmental Authorisation be REFUSED; alternatively, [strict conditions and a redesign].

[Name] – [contact] – Attachments: [baseline / impact / health report]

PART B – RECORD OF THE COMMUNITY'S POSITION (customary land)

"The [community], through its recognised structures, having considered the proposed [project], records that it OBJECTS to the project and does NOT consent to mining/development on its land, for the following reasons: [rights / livelihood / graves / environment]. Recorded on [date], [who was present / how decided]."

8D. Coalition outreach email (to an organisation)

Subject: [Organisation] + [project] – a specific ask that fits your work

Dear [Name],

I'm [name] with [organisation] in [place]. We're working on [project], which [one-line stake]. I'm getting in touch because this connects directly to [organisation]'s work on [their aim].

We're not asking you to adopt our whole campaign – just one concrete thing that serves your aims: [tailored ask – e.g. "help with the internal appeal and a possible PAJA review," or "help us record and defend the community's consent decision," or "have your researchers assess the water impacts independently"].

If helpful, I can send a one-page brief and arrange a short call.

Thanks for considering it,
[Name] – [Organisation] – [contact]

8E. PAIA request (the access-to-information tool)

To: The Information Officer, [the competent authority / the department / the municipality], [office]

Request for access to a record in terms of the Promotion of Access to Information Act, 2000 (PAIA)

Please provide the following records concerning [project] (ref [ref]):

1. The full EIA report / scoping report and all specialist studies.
2. The public-participation record: the I&AP register, comments received, and the responses to comments.
3. The Environmental Authorisation and the reasons for the decision.
4. For mining: the mining-right application and any record of community consent.
5. All correspondence between [the authority] and [the developer], [dates].

[Complete the prescribed PAIA request form and pay any prescribed fee.] If access is refused, please provide adequate reasons and inform me of my right to lodge an internal appeal / approach the Information Regulator or a court.

[Name] – [address] – [date]

8F. Internal appeal / PAJA review (route it correctly)

NOTE: FIRST lodge the INTERNAL APPEAL to the Minister/MEC – usually WITHIN 20 DAYS of being notified of the decision. It is free and can suspend the authorisation. If the appeal fails, take the decision on JUDICIAL REVIEW to the High Court under PAJA. Contact a public-interest law centre or environmental lawyer IMMEDIATELY – the 20-day window is short, and the Biowatch principle limits your costs risk.

[INTERNAL APPEAL – Minister/MEC]
[Date]

Appellant: [name / registered NPC], [address], registered I&AP.

The decision appealed: Environmental Authorisation for [project], ref [ref], dated [date].

Grounds of appeal:

1. [Missing community consent under IPILRA (customary land).]
2. [Misleading EIA / failure to consider a relevant factor, e.g. climate, water, biodiversity.]
3. [Defective public participation.]
4. [Breach of the section 24 environmental right.]

Relief sought: that the Environmental Authorisation be SET ASIDE / the appeal be upheld and the authorisation refused; and that it be SUSPENDED pending this appeal.

[Name] – [contact]

8G. Press release (effective)

FOR IMMEDIATE RELEASE

[HEADLINE: make it NEWS, not opinion]
[Subtitle: consequence + timeliness]

[DATELINE: Place / Date]

[LEAD – answer “why now?”]
[Local organisation] released [study / PAIA documents / the community's recorded position] today showing [specific finding] affecting [# of people / hectares / a community holding customary land].

KEY FINDINGS

- [Quantified impact with citation]
- [Quantified impact with citation]
- [Quantified impact with citation]

[DIRECT QUOTE – specific, from a credible voice, not a slogan]

"[What the finding means]," said [Name, Title].

[CONTEXT – why it matters; reference a documented case where relevant]

[DECISION POINT – create urgency]

[The department] decides on [date]. The internal-appeal window is 20 days.

[CALL TO ACTION] To support or lodge an objection: [how].

For more: [contact].

CONTACT: [Name / Organisation / Phone / Email]

ATTACHMENTS: full report, PAIA documents, the community's recorded position, maps, Q&A

8H. Legal strategy decision tree

See Step 4 for the full decision tree — Tracks 1-3, the internal appeal and the PAJA review, the consent, EIA, and section 24 levers, the Biowatch costs protection, and the budget branches.

SECTION 9: WHEN THE SYSTEM IS TILTED TOWARD APPROVAL (HONEST MECHANICS)

What this means. A system is **tilted toward approval** when the bodies that decide on a project lean, in practice, toward approving it — because the government is pushing investment and jobs, because the developer's own specialist writes the impact study, or because refusals are rare. It rarely means anyone broke the law. (It is *not* what South Africans call **state capture** — the grand corruption of state institutions — which is a Section 11 matter.) Here is how the tilt works — and how communities win anyway.

Important Caveat

This section describes patterns from documented South African dynamics and public policy — "strategic project" backing, developer-appointed **EAPs** who compile the EIA, rare refusals, and the practice of regularising works started without authorisation. It is not a statistical claim about "X% of all decisions." Read it as: "where these patterns appear, here is what happens and what it means for opposition."

What This Tilt DOES (and DOESN'T DO)

DOES: create financial and political incentive to approve (jobs, rates, mining **royalties**, "strategic project" status); bias information (the **EIA** is compiled by the developer's own **EAP**, and reads optimistically); advantage well-resourced developers (better specialists, lawyers, appeals); and let projects that started work without authorisation apply to **regularise** them after the fact (a "rectification" process, which critics say can reward non-compliance).

DOESN'T: guarantee approval; make opposition impossible; remove the community's **consent** power on customary land; remove the **section 24** right or the **appeal** and **PAJA review**; or prevent set-asides, conditions, and delay.

Analogy: a tilted system is like playing on a pitch sloped against you. It makes winning harder, not impossible — so your strategy has to be sharper and more visible, your legal grounds cleaner, and your **PAIA** paper trail solid.

Documented South African Dynamics

Consent and documentation can change the law (Xolobeni). Despite strong backing for the mine, it was stopped — and the law reshaped — after the Amadiba community documented their rights, recorded their refusal, and won the ruling that their **consent** was required. **Lesson:** even a well-backed project can fall when documentation, the community's consent, and the courts line up.

A misleading study can be caught (Thabametsi). A coal plant's authorisation was reviewed and sent back because its **climate** impacts had not been assessed. **Lesson:** the developer's optimistic **EIA** is a target — independent evidence and a careful reading of what the study omits are among the most valuable things a campaign can produce.

The impact study is the developer's. Because the **EAP** is appointed and paid by the developer, the EIA tends to read in the project's favour. **PAIA** disclosures and independent survey work that contradict it are powerful.

Assessment Framework — Determine Your Situation

GREEN FLAG (low tilt): an ordinary authorisation with genuine scrutiny; no "strategic project" label; a clear legal defect; customary land engaged (giving the community a consent right). → 65-75% with all 5 steps. Proceed with standard opposition.

YELLOW FLAG (moderate tilt): strong pro-investment push and a developer-appointed **EAP**, but independent evidence is possible and a legal ground (consent, EIA, participation, section 24) is arguable. → 40-45% with all 5 steps; often win conditions and delay even if not a refusal. Proceed; prioritise the consent and the EIA/participation defects.

RED FLAG (high tilt): a national "strategic" project, developer-only studies, heavy political backing, and a possible after-the-fact **regularisation**. → 25-30% to stop; 50-60% to modify/delay. Decide whether delay/conditions justify the investment; lead with the cleanest ground (consent on customary land, or the section 24 right); build power and a record for the next round.

Direct Action and Defender Safety: Factual Information (Descriptive, Not Prescriptive)

When authorisation and legal routes are exhausted, some South African communities have used non-violent direct action — pickets, marches, and blockades. This is descriptive of what has occurred, not guidance, and in South Africa it comes with a serious safety warning.

South Africa is dangerous for environmental and land defenders and for whistleblowers. This is not abstract. **Sikhosiphi "Bazooka" Rhadebe**, chairperson of the Amadiba Crisis Committee leading the Xolobeni anti-mining struggle, was **assassinated in March 2016**, shot by men posing as police. **Babita Deokaran**, who exposed roughly R850 million in suspicious hospital-tender payments, was **assassinated in August 2021**. Organisers in high-conflict areas — especially over mining on communal land — have faced intimidation, violence, and attempts to split communities.

Anyone considering direct action — or even visible organising in a high-conflict area — should take the physical and legal risk with the utmost seriousness: don't act alone; keep actions non-violent, lawful (give the notice the **Regulation of Gatherings Act** requires), and well-documented; line up **legal support** in advance; keep decisions transparent and collective so a developer cannot co-opt individual leaders; and stay connected to human-rights bodies (the **SAHRC**, Amnesty International, and organisations that support defenders), to public-interest law centres, and to the press — visibility is a measure of protection. If there are threats, treat them as a safety emergency: report them, tell your networks, and seek protection. Direct action has produced delay and disproportionate attention in documented cases, but on its own rarely stops a project permanently; combined with documentation, the community's consent, the appeal and courts, and media, it is more consequential — and safer.

Honest Assessment

Where the system is tilted, opposition using authorisation and legal methods has lower odds of an outright stop — but still reliably wins set-asides or conditions, forces delay (often long), imposes political cost, builds durable community power, and creates a record for the appeal and the courts. And South Africa offers genuine equalisers: a justiciable **section 24** environmental right, a free **internal appeal**, **PAJA** review, broad **section 32** standing, the community's **consent** power on customary land, the **PAIA** access-to-information tool, and the **Biowatch** costs protection. Neither scenario makes opposition futile.

SECTION 10: WHEN IT'S ACTUAL CORRUPTION (AND HOW TO EXPOSE IT)

Section 9 covered a system **tilted toward approval** — pressures that are usually lawful. This section covers something narrower and more serious: **actual corruption** — the unlawful or unethical use of a public position for private benefit, or improper influence over a decision. It is rarer than ordinary bias, but where it exists it is both a wrong worth exposing and, strategically, a project's single greatest vulnerability. South Africa has strong bodies to receive these matters — but handle them carefully, because getting the facts wrong exposes you to a defamation claim.

What counts as corruption (a spectrum from illegal to merely unethical)

- **Bribery and abuse of office** (offences under the **Prevention and Combating of Corrupt Activities Act, PRECCA**) — money, jobs, or favours in exchange for an authorisation or a decision, or a public servant abusing office for gain.
- **Tender and procurement fraud, and the "capture" of state institutions.** South Africa's largest corruption phenomenon has a name: **state capture** — the systematic corruption of state departments and state-owned enterprises (such as the power utility and the rail company) for private benefit, investigated by the **Judicial Commission of Inquiry into State Capture (the Zondo Commission)**. It is the reference point for how corruption can hollow out decision-making — and a reminder that these matters are serious and well-documented, even if prosecutions have lagged.
- **Undisclosed conflicts of interest** — a decision-maker with a hidden stake (land near the site, an interest in the developer, a family tie) who does not step aside.
- **The revolving door** — officials and the developer's staff or consultants moving between each other.
- **Improper gifts, hospitality, or political funding** flowing from a developer to the people deciding its project.
- **Falsified or copied studies** — an **EIA** with fabricated data or plagiarised from another project.
- **Insider land dealing** — acquiring affected land using non-public knowledge of a coming authorisation or land-use change.

Red flags to watch for

- An authorisation granted despite officials' or specialists' negative view, with thin or shifting reasons.
- Sudden reversals, rushed timelines, or a decision pushed through quietly.
- An official who did not step aside despite a personal interest.
- Off-record meetings between the developer and decision-makers.
- Gifts, hospitality, trips, or political donations flowing from the developer to decision-makers or their families.
- A decision-maker — or a relative — owning affected land or an interest in the developer.
- The same small circle of firms, consultants, and officials recurring across authorisations and tenders.
- Records "not available," or requests refused under **PAIA**.

How to document and investigate it (follow the money — carefully)

- **PAIA requests** for correspondence, minutes, contracts, and the authorisation file (with an appeal to the Information Regulator or a court if refused).
- **The Auditor-General's reports** and audit findings on the department or project (including **material irregularities**).
- **Company and land registries** — who owns the affected land and who profits; the **CIPC** company filings.
- **Procurement and political-funding records** — check whether the developer won tenders irregularly or funded decision-makers.
- **Minutes and specialist opinions** — compare the decision to the officials' recommendation.
- **Build a timeline:** interest or donation → meeting, gift, or contract → decision. Corruption is almost always shown by **pattern and timing**, not a confession.
- **Whistleblowers** often break these stories — but South Africa's record is grim: **whistleblowers have been assassinated** (as Babita Deokaran was in 2021). Protect their identities, use the protections of the **Protected Disclosures Act**, and take security seriously.

The legal lever: a tainted or arbitrary decision can be undone

Two features make this powerful. First, an authorisation granted through an **arbitrary, biased, or bad-faith** process, or tainted by an undisclosed interest or an ulterior purpose, can be **set aside** by a court on **PAJA review** — you do not have to secure a criminal conviction first; you have to show the decision was unlawful. Second, the offences under **PRECCA** can be pursued by the investigating and prosecuting authorities. So documenting a tainted process can be both a **ground to undo the authorisation** and a matter for the anti-corruption bodies.

Where to report it

- The **Public Protector** — for maladministration and improper conduct in government and state-owned enterprises.
- The **Special Investigating Unit (SIU)** — which investigates corruption and maladministration and recovers state losses through the **Special Tribunal** (often on a presidential proclamation).
- The **Auditor-General (AGSA)** — for audit findings and material irregularities.
- The **Hawks (Directorate for Priority Crime Investigation)** and the **National Prosecuting Authority (NPA)** — for the criminal offences.
- **Corruption Watch** (a civil-society body) and **investigative outlets** — in parallel with the official channels.

Strategy: exposing a tainted process can beat a project

A credible, documented corruption story does several things at once: it triggers an investigation; it can get the authorisation set aside as unlawful; it flips media coverage from "local dispute" to "scandal"; it splits the political support behind the project; and it damages the developer's reputation and financing. **Exposing a tainted process is often more powerful than arguing inside it** — the state-capture revelations reshaped the politics of accountability nationally.

Do this responsibly — and safely

- **Stick to documented facts.** Publish the records and the timeline and let readers draw conclusions; frame anything unproven as a question, not an accusation.
- **Mind defamation.** Publicly accusing a named person of a crime you cannot prove is legally dangerous in South Africa (there is civil defamation, and criminal defamation remains on the books). Work with a lawyer and an experienced journalist before publishing allegations.
- **Report through the Public Protector / SIU / Hawks / NPA and the courts in parallel** with any media, so there is a formal record and an investigation can follow.
- **Protect whistleblowers and yourself.** The danger is real and documented; use the **Protected Disclosures Act**, keep identities confidential, and stay connected to human-rights and legal-support networks.
- **Don't cry "corruption" without evidence.** Calling ordinary, lawful bias (Section 9) "corruption," or loosely invoking "state capture," destroys your credibility and can expose you to a claim. Keep the two separate — which is exactly why they are separate sections here.

INTEGRATION: HOW ALL FIVE STEPS WORK TOGETHER

Realistic 12-Month Campaign Timeline

- Months 1-2 — Foundation + Documentation:** identify the target and decision-maker (Step 1); begin baseline surveys and map land use and tenure (Step 2); convene the community and form or partner with a registered NPC (Step 3); register as **I&APs**, file first **PAIA** requests, and make first reporter contacts (Steps 4-5). *Outcome:* structure forming, the record and paper trail beginning.
- Months 2-3 — Public Launch:** baseline complete; community meeting + objections in the public-participation process + **recorded community position** (Steps 3-4); media event (Step 5). *Outcome:* opposition visible, objections and position on the record, 3-5 stories.
- Months 3-4 — Coalition + Impact Analysis:** complete impact analysis testing the **EIA** (Step 2); expand the coalition and bring in a law centre and a land-rights organisation (Step 3); prepare the **internal appeal** grounds (Step 4); data-release press event (Step 5). *Outcome:* broad coalition, legal grounds identified, coverage expanding.
- Months 4-6 — Expansion + Health Data:** health/livelihood report (Step 2); sustained marches (Step 3); the authorisation decision (Step 4); expert press events (Step 5). *Outcome:* possible refusal or strict conditions, quantified impacts, regional media.
- Months 6-9 — Escalation + Appeal:** marches escalating (Step 3); if authorised, lodge the **internal appeal** (within 20 days) and prepare a **PAJA review**, with an interim-interdict application if works are imminent (Step 4); ongoing monthly media (Step 5). *Outcome:* sustained pressure, case live.
- Months 9-12 — Peak Pressure + Positioning:** maintain opposition (Step 3); appeal/review positioning (Step 4); media momentum (Step 5). *Outcome:* authorisation + opposition + media + law compound; set-aside, conditions, or the project shelved.

Key Principles (What Separates Winning Campaigns from Losing Ones)

1. **Specificity** — "the community never gave consent," not "we oppose the project."
2. **Multi-tactic pressure** — objections + recorded consent position + opposition + media + legal, together.
3. **Long-term organising** — sustain 12+ months; prevent burnout; keep people safe.
4. **Documentation first** — build the evidence (including land use, tenure, and who lives there), then object and litigate on it.
5. **Coalition building** — 5-10 diverse groups; respect the community's own decision-making and guard against co-option.
6. **Use consent, section 24, and PAIA** — the customary-consent power, the constitutional right, and the paper trail are distinctively strong South African levers.
7. **Appeal first, then review** — lodge the free internal appeal (within 20 days), then PAJA review; Biowatch limits the costs risk.
8. **Realistic expectations** — expect conditions/modifications/delay; a refusal or shelving is the bonus; expect possible after-the-fact regularisation and re-grants.
9. **Persistence and safety** — plan for 12-24 months (and possibly several forums), keep momentum, and protect organisers and whistleblowers.

Warning Signs — Act Early

Watch for these and respond fast: attendance declining around months 4-5 (burnout); coalition members leaving or being co-opted; no media coverage for 2-3 months; the case stalling or an after-the-fact **regularisation**; fundraising below half your target by month 6; a core organiser leaving without a successor; **threats or intimidation** against organisers (treat as a safety emergency — see Section 9); or someone new pushing illegal or reckless tactics. Each has a fix earlier in this guide — catch it early and the campaign holds.

FINAL ASSESSMENT: OUTCOMES & WHEN TO REASSESS

Real Outcomes: What Winning Looks Like

- **Authorisation refused / project shelved** (rarer): usually needs overwhelming opposition + a strong consent or EIA/participation case + heavy media + lower tilt. Xolobeni (mine stopped, and the law changed) shows it happens.
- **Authorisation modified** (most common victory): strict conditions, genuine rehabilitation and relocation terms, buffers, independent monitoring, redesign — often via the appeal or a court.
- **Delay / attrition:** stalled for years while authorisation, appeal, and review run; costs mount and financiers lose confidence; the developer sometimes walks away.
- **Defeat:** the project proceeds (sometimes via after-the-fact **regularisation** or a re-grant after a curable defect). Focus then shifts to enforcing conditions and rehabilitation, monitoring compliance (report breaches to the **Green Scorpions**), and the next opening.

Decision Point: Continue, Modify, or Reassess

Continue if the legal grounds are live, the consent and PAIA record is strong, opposition is holding or growing, media is at least monthly, the coalition is stable, and organisers are safe.

Modify if attendance is falling, coverage has dropped for 2+ months, coalition members are leaving, the legal position has weakened, or you discover the system is more tilted than assessed.

Reassess if, after ~12 months (and perhaps the appeal and a review) authorisation and legal options are exhausted, the decision looks settled despite real effort, the community is exhausted, or resources are gone — or if the personal or legal risk to organisers has become

unacceptable. Ask: has opposition already won partial victory (conditions, rehabilitation, delay)? Would more effort win more, or just prolong the fight? Should energy shift to enforcing conditions, to the next project, or to changing the policy?

The Bottom Line

Opposition work can stop or significantly modify destructive projects in South Africa — even where investment, **royalties**, and "strategic project" politics point toward approval. Opposition creates multiple, compounding forms of pressure: on the record, politically, in the press, on **internal appeal**, and in the courts. Where the system is tilted, an outright stop is less likely, but opposition still delivers set-asides, conditions, rehabilitation, delay, and durable power.

And South Africa offers genuine equalisers: a justiciable **section 24** right to a healthy environment; a free **internal appeal** that can suspend an authorisation; **PAJA** review of unlawful decisions; broad **section 32** standing to act in the public and the environment's interest; the community's **consent** power over customary land; the **PAIA** access-to-information tool; the **Biowatch** costs protection that lets communities litigate without fear of a ruinous costs order; and, when a project truly cannot lawfully proceed, the possibility of outright refusal — as at Xolobeni, which not only stopped a mine but changed the law.

Know your situation. Assess how tilted the system is, honestly. Watch for genuine corruption and refer it to the anti-corruption bodies. Keep organisers and whistleblowers safe. Choose your strategy accordingly. Then organise — with eyes open to both the possibilities and the barriers.

RESOURCES (verified)

Legal help:

- The **Centre for Environmental Rights (CER)** — *cer.org.za* — public-interest environmental lawyers who act for communities.
- The **Legal Resources Centre (LRC)** — *lrc.org.za* — public-interest law, including land and environmental rights.
- Environmental and land-rights lawyers and law-school law clinics; the **Legal Aid South Africa** service for those who qualify.

The decision and the appeal:

- The **competent authority** (the provincial environmental department or the national **DFFE**) — the Environmental Authorisation and the public-participation record.
- The **internal appeal** to the **Minister/MEC** (usually within 20 days), then **PAJA review** in the **High Court**.

Transparency: the **Promotion of Access to Information Act (PAIA)** — request records from the relevant Information Officer; escalate to the **Information Regulator** or a court if refused.

Integrity and anti-corruption: the **Public Protector** (*pprotect.org*); the **Special Investigating Unit** (*siu.org.za*) and the **Special Tribunal**; the **Auditor-General (AGSA)** (*agsa.co.za*); the **Hawks** and the **NPA**; **Corruption Watch** (*corruptionwatch.org.za*).

Rights and safety: the **South African Human Rights Commission (SAHRC)** (*sahrc.org.za*); human-rights organisations that support defenders; report threats to the police and seek protection. Environmental non-compliance can be reported to the **Green Scorpions** (Environmental Management Inspectors).

Environmental and accountability media: *Daily Maverick*; *News24*; *GroundUp*; **amaBhungane**; the *Mail & Guardian*; **Oxpeckers** (environmental investigative journalism); *Corruption Watch*; and community radio.

Nothing here is legal advice. The environmental, mining, and land laws are amended from time to time, and deadlines and procedures vary — get current advice from an environmental lawyer or a public-interest law centre before relying on this.

GLOSSARY

Terms are listed alphabetically. Words shown in **bold** in the guide are the ones defined here.

- **Biowatch principle:** the rule that a person or community litigating in good faith on a genuine environmental or constitutional issue against the state should not, as a rule, be ordered to pay the state's legal costs if they lose — lowering the risk of going to court.
- **Competent authority:** the government body that decides an Environmental Authorisation — usually the provincial environmental department, or the national DFFE (or, for mining, the mineral-resources authority).
- **Conflict of interest:** a decision-maker's private stake in a matter they decide; if undisclosed, it can taint and undo the decision.
- **Customary tenure / informal land rights:** rights to land held under customary law and community practice, protected by IPILRA; they require the community's consent before deprivation.
- **DFFE:** the (national) Department of Forestry, Fisheries and the Environment.
- **EAP (Environmental Assessment Practitioner):** the specialist — appointed and paid by the developer — who compiles the EIA.
- **EIA (Environmental Impact Assessment) / EIA report:** the study of a project's environmental impacts, alternatives, and mitigation, required before an Environmental Authorisation.
- **Environmental Authorisation (EA):** the approval, granted under NEMA by the competent authority, that a listed activity needs before it can start.

- **Green Scorpions:** the Environmental Management Inspectors who enforce environmental law and to whom breaches can be reported.
- **I&AP (interested and affected party):** a person or body registered to participate in, comment on, and appeal an environmental decision.
- **IPILRA (Interim Protection of Informal Land Rights Act 1996):** protects informal/customary land rights; a person may not be deprived of such a right without consent — the basis of the Xolobeni consent ruling.
- **MEC:** a provincial Member of the Executive Council — here, the provincial minister responsible for the environment, who decides many authorisations and appeals.
- **MPRDA (Mineral and Petroleum Resources Development Act):** the law under which mining and prospecting rights are granted.
- **NEMA (National Environmental Management Act 107 of 1998):** the framework environmental law — the Environmental Authorisation, the EIA, the principles, and (section 32) broad standing.
- **PAIA (Promotion of Access to Information Act 2 of 2000):** the access-to-information (freedom-of-information) law — a central transparency tool.
- **PAJA (Promotion of Administrative Justice Act 3 of 2000):** the law under which a court can judicially review and set aside an unlawful, unfair, irrational, or unreasonable administrative decision.
- **Public Protector:** a constitutional (Chapter 9) body that investigates maladministration and improper conduct in government and state-owned enterprises.
- **Regularisation / rectification:** the process by which a project that started work without an authorisation can apply to have it authorised after the fact — a practice critics say can reward non-compliance.
- **Royalties:** payments to the state from mining, creating a financial incentive to approve.
- **Section 24 / 32 / 33 (Constitution):** the environmental right (24); the right of access to information (32); and the right to lawful, reasonable, and procedurally fair administrative action (33).
- **Section 32 of NEMA:** the provision giving broad standing to litigate — in one's own interest, the public interest, or the interest of protecting the environment.
- **SIU (Special Investigating Unit):** a statutory body that investigates corruption and maladministration in state institutions and recovers losses through the Special Tribunal.
- **State capture:** the South African term for the systematic corruption of state institutions and state-owned enterprises for private benefit — a Section 11 (corruption) phenomenon, investigated by the Zondo Commission, and distinct from the lawful "tilted toward approval."
- **A system tilted toward approval:** the situation where the bodies deciding on a project lean toward approving it — because of the push for investment, because the developer's own specialist writes the impact study, or because refusals are rare — usually without anyone breaking the law.